any act to that effect would be utterly void, because it would be inconsistent with the constitution, which is a fundamental law, paramount to all others, which we are not only bound to consult, but sworn to observe; and therefore, where there is an interference, being superior in obligation to the other, we must unquestionably obey that in preference. Subject to this restriction, the whole business of organizing the courts, and directing the methods of their proceeding, where necessary, I conceive to be in the discretion of congress. If it shall be found, on this occasion, or on any other, that the remedies now in being are defective, for any purpose, it is their duty to provide for, they no doubt will provide others. It is their duty to *legislate*, so far as is necessary to carry the constitution into effect. It is *ours* only to *judge*. We have no reason, nor any more right to distrust their doing their duty, than they have to distrust that we all do ours. There is no part of the constitution that I know of, that authorizes this court to take up any business where they left it, and in order that the powers given in the constitution may be in full activity, supply their omission by making *new laws* for *new cases;* or, which I take to be the same thing, applying *old principles* to *new cases* materially different from those to which they were applied before.

With regard to the attorney-general's doctrine of incidents, that was founded entirely on the supposition of the other I have been considering. The authority contended for is certainly not one of those necessarily incident to all courts merely as such.

If therefore, this court is to be (as I consider it) the organ of the constitution and the law, not of the *constitution* only, in respect to the manner of its proceeding, we must receive our directions from the legislature in this particular, and have no right to constitute ourselves an *officina brevium*, or take any other short method of doing what the constitution has chosen (and, in my opinion, with the most perfect propriety) should be done, in another manner.

But the act of congress has not been altogether silent upon this subject. The 14th section of the judicial act, provides in the following words: "All the before-mentioned courts of the United States shall have power to issue writs of *scire facias*, *habeas corpus*, and all other writs not specially provided for by statute, which may be necessary for the exercise of their
*434] respective *jurisdictions, and agreeable to the principles and usages of law." These words refer as well to the supreme court as to the other courts of the United States. Whatever writs we issue, that are necessary for the exercise of our jurisdiction, must be agreeable to the principles and usages of law. This is a direction, I apprehend, we cannot supersede, because it may appear to us not sufficiently extensive. If it be not, we must wait until other remedies are provided by the same authority. From this it is plain, that the legislature did not choose to leave to our own discretion the path to justice, but has prescribed one of its own. In doing so, it has, I think, wisely, referred us to principles and usages of law, already well known, and by their precision calculated to guard against that innovating spirit of courts of justice, which the attorney-general, in another case, reprobated with so much warmth, and with whose sentiments in that particular, I most cordially join. The principles of law to which reference is to be had, either upon the general ground I first alluded to, or upon the